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Banuelos v. Grebel et al., Case No. 25PSCV00816

ORDER ON EX PARTE APPLICATION FOR ORDER TO PROHIBIT SHARING OF NEUROPSYCHOLOGICAL TESTING EXAMS AND RAW DATA

Defendant SWDS Holdings, Inc. ("SWDS") has filed an ex parte application for an order prohibiting the sharing of neuropsychological testing exams and raw data to individuals other than licensed psychologists. Because the assigned Court (Department A) is dark on September 1, 2026, the matter is being heard by this Court (Department H). The Court has reviewed SWDS's application and the accompanying declaration of Barbara A. Keough, as well as Plaintiff Giancarlo Banuelos's opposition and the accompanying declaration of Sherwin Nahavandi. For the reasons stated herein, the Court denies the application without calling the matter for hearing. (Wilburn v. Oakland Hospital (1989) 213 Cal.App.3d 1107, 1111 [decision to hear oral argument is within the discretion of the court].)

Ex parte proceedings "are designed to afford relief on an essentially emergency basis." (Newsom v. Superior Ct. (2020) 51 Cal.App.5th 1093, 1097.) As such, an applicant seeking ex parte relief "must make an affirmative factual showing in a declaration containing competent testimony based on personal knowledge of irreparable harm, immediate danger, or any other statutory basis for granting relief ex parte." (Cal. Rules of Court, rule 3.1202(c).) "A trial court should deny an ex parte application absent the requisite showing." (People ex rel. Allstate Ins. Co. v. Suh (2019) 37 Cal. App. 5th 253, 257.)

Here, the Court finds that SWDS has not made an affirmative factual showing of irreparable harm, immediate danger, or other statutory basis for granting relief ex parte. The cited "urgent basis" for the application is that "the parties risk expending resources on briefing a motion that cannot lawfully be granted, and Defendant's expert risks being placed in an impossible ethical position." (Keough Decl. ¶ 5.) SWDS further asserts that exigency exists "because the court ordered the parties to arrive at an agreement for the sharing of this data by September 1, 2026." (Keough Decl. ¶ 6.) However, the minute order reflects that the parties were ordered to meet and confer as to disclosure under a protective order by September 1, 2026 and that Plaintiff could thereafter file a motion relating to the data (Minute Order dated 8/10/2026), thus suggesting that if disputes remained following the meet-and-confer session, the assigned Court (Department A) would resolve the issue through normal motion practice. This Court disagrees that having to expend resources on motion practice constitutes a bona fide emergency requiring ex parte relief. While the Court appreciates that SWDS would prefer to have this issue resolved on a sooner timetable, that is not the standard for ex parte relief. Moreover, while SWDS may point to compelling policy arguments in support of its position, it has not pointed to any clear precedential authority in favor of the requested relief, a factor that weighs against deciding the issue on an emergency ex parte basis rather than on regular notice, where the assigned Court (Department A) will have the benefit of time and more comprehensive briefing.

The application is therefore denied without prejudice to SWDS seeking relief through the filing of a regularly noticed motion.

SWDS is directed to give notice.